

|     |                                                                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
|-----|--------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|     |                                                                    | <p>Defendant argues that if the demurrer is sustained based on inadequate alter ego allegations, then such should be stricken.</p> <p>Because the demurrer is overruled, including with respect to the alter ego allegations, the motion to strike is denied.</p> <p>Plaintiff shall give notice of both rulings.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 15. | 2024-1419322<br>Rodriguez vs.<br>Avis Budget<br>Car Rental,<br>LLC | <p>Specially appearing defendant Edmund Bagtas’s motion to quash service of summons is granted.</p> <p>Code of Civil Procedure section 415.50 permits service by publication only where it appears by affidavit that the defendant “cannot with reasonable diligence be served in another manner” provided by the governing service statutes. Because service by publication rarely provides actual notice, the required diligence entails a thorough and systematic investigation undertaken in good faith. (<i>Watts v. Crawford</i> (1995) 10 Cal.4th 743, 749, fn. 5; <i>Rios v. Singh</i> (2021) 65 Cal.App.5th 871, 880.) The relevant question is whether the plaintiff took the steps a reasonable person who genuinely desired to provide the defendant with notice would have taken under the circumstances. (<i>Rios</i>, supra, at p. 880.)</p> <p>Contrary to plaintiffs’ contention, the Court’s prior ex parte order authorizing publication does not preclude defendant from challenging the validity of the resulting service. A motion under Code of Civil Procedure section 418.10 is the appropriate means of challenging service for lack of personal jurisdiction. Once such a challenge is made, plaintiffs bear the burden of establishing the facts necessary to demonstrate valid service. (<i>Lebel v. Mai</i> (2012) 210 Cal.App.4th 1154, 1163.)</p> <p>Plaintiffs have not carried that burden. Their evidence establishes the following efforts. In approximately April 2025, a process server attempted service at 1020 West Ball Road, Room 203, Anaheim, but was denied entry by a guard. The record identifies no further attempt at that location and no inquiry directed to the hotel concerning whether defendant remained a guest there.</p> <p>In December 2025, plaintiffs requested an address from the Avis defendants and were given 3868 Donnington Drive in Virginia Beach, Virginia. The proof of nonservice reflects <i>three</i> attempts at that address on January 5, 10, and 16, 2026, at 2:45 p.m., 3:30 p.m., and 4:15 p.m., respectively. No one answered the door. Although plaintiffs’ declarations and opposition characterize these as “more than four” attempts (Opposition, (ROA 93) at line 1), this is wrong; the proof submitted establishes only three.</p> |

|                                           |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
|-------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                                           | <p>The Avis defendants subsequently supplied a third address, 1050 West Ball Road in Anaheim. Plaintiffs made no attempt at service there. Counsel instead unilaterally concluded that an attempt would be “impractical” and “futile” (Opposition, (ROA 93), page 4, line 3 and page 6, lines 3-10, respectively) because the address appeared to be a hotel and no room number had been provided.</p> <p>Plaintiffs identify no independent effort to ascertain defendant’s current residence or whereabouts. There is no evidence of inquiry through publicly available address or property records, postal information, telephone or other directories, an investigator, known relatives or associates, the rental transaction records, or any other likely source of information. The Court does not hold that every conceivable investigative method must be exhausted, or that any one of the foregoing steps is invariably required. But the limited attempts shown here, coupled with the complete absence of any demonstrated independent investigation and plaintiffs’ decision not even to attempt service at the most recently supplied address, do not establish reasonable diligence under section 415.50.</p> <p>Nor does the record support plaintiffs’ repeated assertion that defendant has been deliberately evading service. The inability to serve defendant at the identified addresses may establish that the attempts were unsuccessful; it does not, without more, establish intentional evasion. Plaintiffs’ further assertion that defense counsel has been unable to locate defendant is unsupported by competent evidence and, in any event, does not satisfy plaintiffs’ own obligation to undertake a reasonably diligent investigation.</p> <p>Accordingly, the Court’s April 6, 2026, order authorizing service by publication is vacated, and the purported service of the summons and complaint upon defendant Edmund Bagtas by publication is quashed. This ruling is without prejudice to plaintiffs’ seeking a renewed order for publication upon a sufficient evidentiary showing of reasonable diligence.</p> |
| 2023-01318557<br>Alexander vs.<br>Bhavsar | <p>The motion is denied insofar as Defendants seek wholesale exclusion of Dr. Zaks’s testimony or all of his standard-of-care opinions. Dr. Zaks possesses sufficient education, training, experience, and knowledge in dermatology and dermatologic treatment to satisfy the threshold requirements of Evidence Code section 720. His lack of experience personally performing the particular Pearl Fractional procedure and the concessions made during his deposition concerning the device in question are proper subjects for</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |